

		to the extent the documents were filed, but not as to the truth of the contents therein. Plaintiff's RJN is denied as no documents were attached. Defendant's Objections are improper as the objected-to material is not properly identified.
106	Esfahani vs. Bustos 25-01489387	Motion to Seal Defendant, Valeria Bustos ("Defendant"), in pro per, moves to seal "Settlement Agreement-related papers" under California Rules of Court, rules 2.550-2.551. A Request for Dismissal, without prejudice, was filed and entered on November 24, 2025, as to the entire action of all parties and all causes of action. (ROA 18.) The instant motion to seal was filed on June 23, 2026, many months after the Court entered dismissal of the entire action. Considering the dismissal, Defendant's motion to seal is MOOT. The Court orders the clerk to give notice.
107	Hamidian vs. Avis Budget Group, Inc. 20-01174350	Motion for Severance Plaintiff, Afsaneh Hamidian, moves for an order severing the pending cross-complaints in this action from the trial of Plaintiff's Complaint, for purposes of trial. Specifically, Plaintiff moves for an order providing that: (1) trial of Plaintiff's Complaint against Defendant Jeff Oviedo & Associates, Inc. ("JOA")—the sole remaining defendant—shall proceed first before a jury; and (2) the cross-complaints filed by Avis Budget Group, Inc. ("Avis"), the County of Orange (the "County"), and JOA shall be severed from that trial and

	shall instead be tried by the Court at a later date set at the Court’s convenience. Defendant, CTG Construction, Inc. (“CTG”) contends that the Court should deny Plaintiff’s Motion to Sever Cross-Complaints for Purposes of Trial on the grounds that severing the cross-complaints and proceeding first with Plaintiff’s Complaint against JOA would create a substantial risk of inconsistent findings and awards, and allow overlapping liability and damages issues to be tried before CTG’s remaining exposure through JOA’s Cross-Complaint is resolved. CTG also provides, that in the alternative, if the Court orders separate phases, CTG requests that the Court order the threshold cross-complaint issues to be heard first, including whether JOA has any surviving express contractual indemnity or duty-to-defend claim against CTG and whether any rights JOA claims as an alleged agent of the County were released or waived. Code of Civil Procedure section 1048(b) provides as follows: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” “[I]t is within the sound discretion of the court to difine [sic] issues and direct the order of proof,” and “[i]t is within the discretion of the court to order a severance and separate trials” (McLellan v. McLellan (1972) 23 Cal.App.3d 343, 353.) In determining whether severance is appropriate, courts often look to other factors aside from whether the case presents separate issues. For example, courts will consider the complexity of the issues, the risk of jury
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	confusion, judicial economy, and whether the claims present separate and independent issues. (Downey Sav. & Loan Ass'n v. Ohio Cas. Ins. Co. (1987) 189 Cal.App.3d 1072, 1086.) Granting or denying a motion for separate trials lies within the trial court's sound discretion, and is subject to reversal on appeal only for clear abuse. (Grappo v. Coventry Financial Corp. (1991) 235 Cal.App.3d 496, 504.) As a threshold matter, the Cross-Complaints filed by Avis and the County were dismissed, with prejudice. Specifically, on June 18, 2026, the County's Cross-Complaint was dismissed, with prejudice (ROA 624); on June 29, 2026, Avis's Cross-Complaint against Cross-Defendant, CTG Construction, Inc. was dismissed, with prejudice (ROA 637), and on July 2, 2026, Avis's Cross-Complaint against JOA was dismissed, with prejudice (ROA 640). Only JOA's Cross-Complaint remains for trial. JOA's Cross-Complaint against CTG remains as to the first cause of action for express contractual indemnity; second cause of action for declaratory relief – duty to defend; and fifth cause of action for breach of contract. (ROA 173.) These claims are different from Plaintiff's claims for premises liability, negligence against JOA. JOA's crossclaims raise separate and independent issues from Plaintiff's claim of negligence against JOA. Despite CTG's opposition to severance, CTG appears to concede that severance is appropriate, in part, given its own request to bifurcate the JOA's cause of action for express contractual indemnity to be tried first before Plaintiff's claims against JOA. (CTG's Motion in Limine No. 10). Therefore, it appears that the question is not whether Plaintiff's claims in her Complaint should be severed from JOA's remaining claims in its Cross-Complaint,
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		but in what order severance should be had. Even if CTG did not make such concession, severance is warranted due to the differing claims and issues between Plaintiff's Complaint and JOA's Cross-Complaint, to avoid jury confusion, and to promote efficiency and judicial economy. While some evidence may be overlapping, the issues to be determined to establish JOA's claims against CTG are separate and distinct from the issues to be determined to establish Plaintiff's claims against JOA. As such, there is no risk of inconsistent findings and awards, or overlapping liability and damages issues. Any overlap as to the evidence to establish facts, i.e., same incident, same alleged dangerous condition, and same project in light of the independent issues to be determined as between the Complaint and JOA's Cross-Complaint does not support trying both pleadings together. In addition, CTG does not deny or dispute Plaintiff's assertions that Plaintiff's claims against JOA involves less evidence, less witnesses, and less motions in limine than what will be presented for JOA's claims against CTG, such that it would be more expeditious to conduct a jury trial on Plaintiff's claims against JOA as it consists of less evidence and witnesses, and then, proceed with a longer court trial on JOA's contract-based claims. Despite CTG's claims, there is no prejudice to CTG if Plaintiff's claims against JOA are permitted to be severed and tried first, because the jury is only determining JOA's liability and fault on Plaintiff's tort claims. It is undisputed that the court will determine JOA's contract-based claims. (Mabie & Mintz v. B & E Installers (1972) 25 Cal.App.3d 491, 495 [finding "the jury verdict was not a binding determination of the indemnity issues under the doctrine of res judicata either as merger or bar as collateral estoppel" where
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parties were not adversaries in the personal injury phase of the trial and were not parties to the jury trial].)

As to CTG's claim that JOA's crossclaims should be heard first as they are "threshold" issues, CTG fails to demonstrate that JOA's claims that it may assert rights as an alleged agent, representative, or indemnitee of the County are "threshold" issues. CTG does not show that any issue in JOA's Cross-Complaint and remaining contract-based claims must necessarily be determined before a jury trial is held on Plaintiff's tort claims against JOA.

Based on the foregoing, severance is appropriate in light of the separate and independent issues between Plaintiff's tort claims and JOA's contract-based claims, and as severance will avoid any risk of jury confusion by being presented with evidence on the contract-based claims brought by JOA against CTG and Plaintiff's tort claims against JOA. Given that CTG does not appear dispute Plaintiff's assertion that Plaintiff's tort claims against JOA involve less evidence than the contract-based claims by JOA against CTG, it would be more expeditious to proceed with a jury trial on Plaintiff's Complaint against JOA first, and then have the court try JOA's three contract-based claims in its Cross-Complaint. Thus, the Court GRANTS Plaintiff's motion to sever the only pending Cross-Complaint—JOA's Cross-Complaint against CTG—from Plaintiff's Complaint against JOA, and to try Plaintiff's tort claims first, with JOA's contract-based claims to follow.

Plaintiff to give notice.

The Court will verify that what remains is Plaintiff's Complaint against Defendant, Jeff Oviedo & Associates Inc., and Jeff Oviedo & Associates Inc.'s Cross-Complaint against CTG Construction as to the first cause of action for express contractual indemnity; second cause of action for declaratory relief – duty to

		defend; and fifth cause of action for breach of contract. (ROA 173). The Court could not locate a request to dismiss CTG Construction Inc.’s Cross-Complaint against Butier Engineering, Inc., so it appears it would remain pending, but this seems to be an oversight. The Court seeks clarification from the parties.
108	Sweet Carolina Films, LLC vs. Inspired Family Entertainment 19-01073246	1. Petition to Confirm Arbitration Award 2. Case Management Conference Petitioner, Sweet Carolina Films, Inc.’s Petition to Confirm Contractual Arbitration Award is GRANTED. Initially, the Court notes that the Petition and Response spell Defendant Aldo Guaglianone’s last name “Guaglione.” However, the Complaint and Defendant’s answer (ROA 66) both spell Defendant’s last name as “Guaglianone”. The Court shall spell this defendant’s last name in accordance with the pleadings. The two procedural deficiencies identified in the Court’s November 18, 2025, Order have been corrected. Petitioner has included the electronic service address of the person making the electronic service on the proof of service, and has listed Respondent, Aldo Guaglianone aka Johnny Remo (“Respondent Aldo”), as a respondent in compliance with Code of Civil Procedure section 1285. Respondent also has filed a Response which provides that he does not oppose Petitioner’s compliance with the Court’s November 18, 2025 Minute Order requiring that he be listed on the Petition, but objects to any judgment against him individually since the arbitration verdict expressly enters judgment only against Inspired Family Entertainment, Inc.